

Lecture 4: Democracy & Political Rights

Chapter E, Sections 3-4 (pp. 70-116)

P. Egli - Introduction to Swiss Constitutional Law, 3rd Edition

Study Notes

3. DEMOCRACY

Remember

- **Democracy** implies that all state power is based on the will of the people.
- Main characteristics: **popular self-determination** and **public control over political power**.
- Three basic forms: **direct democracy**, **semi-direct democracy**, and **representative democracy**.

3.1 Concept: Overview

- From Greek: **demos** (people) + **kratos** (power, rule)
- Lincoln's Gettysburg Address (1863): 'government of the people, by the people, for the people'
- All citizens participate equally -- directly or through elected representatives -- in the political and legal system
- Most important political leaders are elected in **free and fair elections** and are accountable under the rule of law

Key Characteristics

- **Popular self-determination and equality**: all citizens participate with equal rights
- **Governmental responsibility**: democratic systems must provide for public control of political power
- **Contrast: Autocracy** -- power held by one person or group, not subject to legal restraints or popular control

3.2 Basic Forms of Democracy

a) Representative Democracy

- Sovereign power remains with citizens; political power exercised **indirectly through elected representatives**
- People's participation limited to **election of government officials**; people do not decide policy questions directly
- Two main forms: **parliamentary** and **presidential** democracy

Aspect	Parliamentary Democracy	Presidential Democracy
Powers	Close interconnection	Strict separation
Government	Parliament forms/supports	People elect president
Dismissal	Vote of no confidence	Fixed term, no dismissal
Head of state	Separate from PM	President = head of state
Party line	Strong discipline	Members vote conscience
Examples	UK, Germany	USA

b) Direct Democracy

- People decide policy questions **directly**; all eligible citizens actively participate
- In ideal form, there is **no parliament**
- Practiced in ancient Greek city-state of **Athens**; hardly implementable in modern complex states

c) Semi-Direct Democracy

- A **representative democracy combined with instruments of direct democracy**
- Parliament and government are main decision-makers, but people can **directly influence policy** through:

- > **Referendum** (mandatory or optional) -- on constitution, statutes, treaties, administrative acts
- > **Popular initiative** (specific draft or general proposal) -- for constitutional revision or legislation
- > **Right to recall** -- dismiss parliament, government, or judges
- > **Extended right to vote** -- elect head of state, government, officials, judges

3.3 Democracy in the Swiss System

Remember

- Switzerland is a **semi-direct democracy**: elected parliament + powerful instruments of direct participation.
- The Swiss model is also called a **consensus-oriented democracy** -- legislation must find fair compromise.
- Switzerland is **neither purely parliamentary nor presidential** -- it combines elements of both.

a) Characteristics

- The people elect representatives in the **Federal Assembly** (primary decision-making institution with Federal Council)
- Citizens can **directly influence** decisions on Constitution and legislation through **referendum and initiative**
- Decisions subject to direct participation are systematically selected according to **importance**

Parliamentary Features

- Constitution establishes parliament as **highest authority** (limited by rights of people and cantons)
- **Parliament elects** the Federal Council (not the people)
- No directly elected head of state; Federal President is **primus inter pares**
- Federal Council **cannot veto** decisions of parliament

Presidential Features

- Federal Council is **personally and functionally independent** of parliament
- Federal Council is a **multi-party coalition** government (not based on coalition agreement)
- Members serve for a **specific term** and **cannot be dismissed** by parliament; Federal Council cannot dissolve parliament
- Federal Council members decide as a **collegium** and defend decisions even if individual members disagree
- **No strong party discipline**; representatives can vote against their own Federal Council member's proposals

b) Key Constitutional Provisions

Key Constitutional Articles

- **Art. 1 Cst**: The people and the cantons form the Swiss Confederation
- **Art. 2 para. 1 Cst**: Protection of liberty and rights of the people
- **Art. 33 Cst**: Right of petition (every person, without prejudice)
- **Art. 34 Cst**: Guarantee of political rights; freedom to form opinions and express will
- **Art. 51 Cst**: Cantons must adopt democratic constitutions
- **Art. 136 Cst**: All Swiss citizens over 18 have political rights (unless lacking capacity)
- **Art. 138-142 Cst**: Initiatives and referenda
- **Art. 148 para. 1 Cst**: Federal Assembly is supreme authority (subject to rights of people and cantons)
- **Art. 190 Cst**: Courts must apply federal statutes (even if unconstitutional) -- supremacy of democratic principle over Rechtsstaat

Art. 190 Cst and Democracy

The democratic legitimacy of parliament (elected by the people) is considered higher than that of judicial authorities (elected by parliament, not directly by the people). Therefore, constitutional review of federal statutes is NOT provided for in the Swiss system. Art. 190 illustrates the supremacy of the democratic principle over the Rechtsstaat principle.

c) Political Rights (Art. 34, Art. 39-40 Cst)

- Political rights enable **direct participation** in elections and policy decisions at federal, cantonal, and communal level
- **Art. 34 para. 2 Cst**: the result of an election or vote must **accurately express the free will** of voters
- Public authorities may **not propagate inaccurate or biased information** that unduly influences voters
- Popular initiatives and governmental proposals must respect **unity of subject matter** -- voters must express their opinion on each subject separately

Distribution of Competencies (Art. 39-40 Cst)

- **Art. 39 para. 1 Cst**: Federation regulates political rights in federal matters; cantons regulate cantonal and communal matters
- **Federal Act on Political Rights (PRA)** of 17 December 1976 contains detailed provisions
- Political rights exercised at **place of domicile** (Art. 39 para. 2 Cst)
- No person may exercise political rights in **more than one canton** (Art. 39 para. 3 Cst)
- Waiting period of max. **3 months** for newly registered residents (Art. 39 para. 4 Cst)

d) Right to Vote

- All Swiss citizens over **18** entitled to participate in National Council elections and popular votes (Art. 136 para. 1 Cst)
- Exception: persons lacking capacity due to **mental illness or incapacity**
- **Active right (aktives Wahlrecht)**: right to elect (vote in elections)
- **Passive right (passives Wahlrecht)**: right to be elected (stand as candidate) -- Art. 143 Cst

Elections to Parliament

- **National Council** (200 members): elected directly by the people, **proportional representation**, every 4 years (Art. 149 Cst)
- Seats allocated to cantons by population; each canton has at least **one seat**
- **Council of States**: elections determined by **cantonal law** (Art. 150 para. 3 Cst)

3.4 Initiative on Federal Level

Remember

- Any **100,000 citizens** entitled to vote may request a **total** or **partial revision** of the Constitution.
- A partial revision may take the form of a **general proposal** or a **specific draft**.
- The initiative must respect: **consistency of form**, **consistency of subject matter**, **jus cogens**, and **implementability**.

a) Overview

Instrument	Form	Signatures	Approval
Total revision (Art. 138)	General proposal	100,000	Preliminary vote + double majority
Partial revision (Art. 139)	General or draft	100,000	Double majority (people + cantons)

b) Total Revision (Art. 138 Cst)

- May only take the form of a **general proposal**
- First: preliminary vote of the people on whether Constitution should be totally revised (Art. 138 para. 2 Cst)
- If approved: **Federal Assembly dissolved**, new elections held (Art. 193 para. 3 Cst)
- New parliament drafts the constitution; approved by **double majority** (people + cantons)
- Historically insignificant: only one attempt, dropped after negative vote in **1935**

c) Partial Revision (Art. 139 Cst) -- Detailed Procedure

- The most **frequently utilized** democratic instrument at the federal level
- Topics range from footpaths in the Alps to abolition of the armed forces

9-Step Procedure

- **(1) Signature list:** sent to Federal Chancellery for preliminary examination (Art. 68-69 PRA); must include canton/commune of signatories, title/text, withdrawal clause, criminal warning, names of at least 7 authors
- **(2) Collection of signatures:** 100,000 within 18 months of official publication (Art. 139 para. 1 Cst); ~1 in 3 cases fail to collect enough
- **(3) Verification:** cantonal authorities verify signatories' voting rights; lists submitted to Federal Chancellery before 18-month deadline (Art. 71 PRA)
- **(4) Federal Chancellery decision:** determines if required number of valid signatures reached (Art. 72 PRA)
- **(5) Federal Council dispatch:** presents parliament a 'Botschaft' and draft decree on validity (Art. 97 ParlA)
- **(6) Validity check by parliament** (see validity requirements below)
- **(7) Parliament decides on support:** recommends adoption or rejection; may submit a **counterproposal** (Art. 139 para. 5 Cst, Art. 100-101 ParlA)
- **(8) Popular vote:** nationwide vote requiring **double majority** (Art. 75a PRA)
- **(9) Entry into force:** published in official compilation (Art. 195 Cst, Art. 7 PubA)

d) Validity Requirements (Art. 139 para. 3 Cst)

- **i. Consistency of form:** must be exclusively a general proposal OR a specific draft -- no mixture (Art. 75 para. 3 PRA)
- **ii. Consistency of subject matter:** individual parts must have an **intrinsic connection** (Art. 75 para. 2 PRA); voters must be able to express opinion on each subject separately

- **iii. Compliance with jus cogens:** must respect mandatory provisions of international law (Art. 194 para. 2 Cst); if it violates jus cogens, parliament must declare it **invalid**
- **iv. Implementability:** must be possible to execute

Lecture Exercise: 'For less military expenses and more peace policy'

The initiative proposes cutting the national defence budget by 10% annually, with 1/3 of savings going to international peace policy and social security.

Analysis: Check consistency of form (specific draft -- OK), consistency of subject matter (military spending + peace policy + social security -- is there an intrinsic connection?), jus cogens (no violation), and implementability (feasible).

Lecture Exercise: 'For a new organisation of military service'

The initiative proposes: (1) clarify duty for Swiss men to do military service, (2) alternative civilian service for conscientious objectors, (3) establish a federal civilian service organization -- all in Art. 18 Cst. PLUS: 'Every Swiss woman is required to do military service' as a new Art. 18.

Analysis: Consistency of form? (specific draft -- OK). Consistency of subject matter? (Military service organization for men + mandatory service for women -- is there an intrinsic connection?). Jus cogens? (No violation). Implementability? (Feasible).

e) Functions of the Popular Initiative

- An **innovative** part of the Swiss political system
- Provides a **political platform** for groups whose interests are not sufficiently represented
- Gives people **control over the political agenda**
- Even **unsuccessful** initiatives encourage the population and authorities to address certain questions
- Since 1891: ~523 initiatives launched, 353 successfully submitted, only **4 declared invalid**, 228 voted on, **25**

accepted

f) Initiative and International Law

- Initiatives conflicting with **jus cogens**: declared **null and void** by Federal Assembly
- Initiatives conflicting with **other international law**: declared valid and submitted to vote
- Problem: several accepted initiatives are arguably **inconsistent with international law**:
 - > Art. 123a Cst (2004): life custody for dangerous sex offenders
 - > Art. 72 para. 3 Cst (2009): prohibition of minaret construction
 - > Art. 121 para. 3-6 Cst (2010): expulsion of criminal foreigners
 - > Art. 121a Cst (2014): control of immigration -- potential conflict with EU bilateral agreements
- Federal Assembly tries to implement such provisions **in conformity with international obligations** (e.g., hardship clauses, prioritizing Swiss residents instead of quotas)

Lecture Example: 'Cash is freedom' Initiative (March 2026)

On 8 March 2026, voters and cantons decided whether to guarantee the availability of cash in the Constitution (new Art. 99 Cst). The initiative demanded that banknotes and coins be forever available in sufficient quantities and that any attempt to replace the Swiss franc must be adopted by voters and cantons.

The Federal Council and Parliament prepared a counterproposal with different wording: the Swiss franc is the national currency and the SNB must guarantee the supply of cash.

Lecture Example: 'Internet Initiative'

The Guido Fluri Foundation launched an initiative for a new Art. 93a Cst demanding that platforms, search engines and AI providers analyse the risks of their services and take measures to limit them. The initiators criticise that the business model of

corporations aims to maximise attention without accountability.

3.5 Referendum on Federal Level

Remember

- Through the referendum, the people **approve or reject** constitutional amendments, statutes, treaties, or parliamentary decisions.
- Two types: **mandatory** (automatically triggered) and **optional** (requested by 50,000 citizens or 8 cantons).
- Two effects: **suspensive** (prevents entry into force) and **abrogative** (repeals acts already in force).

a) Mandatory Referendum (Art. 140 Cst)

Category 1: Double Majority Required (people + cantons)

- All **constitutional amendments** (Art. 140 para. 1 lit. a Cst)
- Accession to **organizations for collective security** (e.g., NATO) or **supranational communities** (e.g., EU) (Art. 140 para. 1 lit. b Cst)
- **Emergency federal statutes** not based on Constitution, validity > 1 year (Art. 140 para. 1 lit. c Cst) -- vote within 1 year; this is an **abrogative** mandatory referendum

Category 2: Simple Majority of People

- Popular initiatives for a **total revision** of the Constitution
- Popular initiatives for a **partial revision** (general proposal) rejected by Federal Assembly
- Whether a **total revision** should be carried out when the two Councils disagree

b) Optional Referendum (Art. 141 Cst)

- Within **100 days** of official publication, **50,000 citizens** or **8 cantons** may request a popular vote
- Only requires majority of **voting population** (not cantonal majority)

Suspensive Optional Referendum (Art. 141 para. 1 lit. a, c-d Cst)

- **Federal statutes**
- **Specific federal decrees** (if referendum provided for in Constitution or statute)
- **Specific international treaties** (unlimited duration, may not be terminated, accession to international organization, or containing important legislative provisions)

Abrogative Optional Referendum (Art. 141 para. 1 lit. b Cst)

- **Emergency federal statutes** whose term of validity exceeds one year

c) Functions of the Referendum

- Over **482 issues** subject to mandatory referendum; about 1/4 rejected (proposals often succeed only on 2nd or 3rd attempt)
- Since 1874, optional referendum successfully requested in about **211 cases** (~7% of parliamentary decisions)
- In about **half** of optional referendum cases, the majority rejected the parliamentary decision
- Referendum = a **right of popular opposition** and **veto power**
- Consequence: political authorities try to minimize referendum risk via **inclusive decision-making**
- Downside: constant threat of referendum may **weaken responsiveness** to challenges

Lecture Example: War Materials Statute Referendum

Germany asked Switzerland to allow re-export of Gepard tank ammunition to Ukraine. Switzerland's War Materials Statute bans exports/re-exports to countries in conflict. Parliament revised the statute to allow arms exports to 25 countries even during conflict. The Green Party opposed this amendment.

Analysis: This is a revision of a federal statute. The Green Party could launch an optional referendum (Art. 141 para. 1 lit. a Cst) by collecting 50,000 signatures within 100 days.

Lecture Example: Airport Zurich AG

Although Zurich Airport AG is a listed company, decisions on runway changes require: (1) approval by cantonal representatives on the board, (2) Government Council directive approved by Cantonal Council (Parliament), and (3) the Cantonal Council decision is subject to optional referendum (e.g., 3,000 citizens in Zurich can request a popular vote). This illustrates how democratic participation affects even corporate infrastructure decisions.

Lecture Exercise: Referendum Type Identification

Which type of democratic participation applies at the federal level?

1. Art. 8 Cst (equality) is repealed
-> Constitutional amendment -> mandatory referendum (double majority)
2. Switzerland accedes to the EU
-> Supranational community -> mandatory referendum (double majority)
3. Amendment of Art. 2a of the Ordinance on Political Rights
-> Ordinance -> NO referendum (ordinances not subject to referendum)
4. A commune in Thurgau wants to become part of St. Gallen
-> Change in cantonal territory -> Art. 53 para. 3 Cst (federal decree, optional referendum)
5. A new federal statute on forced marriages
-> Federal statute -> optional referendum (50,000 signatures or 8 cantons)
6. Appenzell IR and AR want to merge
-> Change in existence of cantons -> Art. 53 para. 2 Cst (constitutional amendment, mandatory referendum)

3.6 Political Rights on the Cantonal Level

- Key federal instruments exist in **all cantons**: mandatory constitutional referendum, optional legislative referendum, popular initiative for constitutional amendments
- **Art. 51 para. 1 Cst** requires cantons to provide mandatory constitutional referendum AND initiative
- Cantonal semi-direct democracy allows **more diverse participation** than the federal level:
 - > Popular initiative extends to **ordinary legislation** (not just constitutional amendments)
 - > In some cantons, the legislative referendum is **mandatory**
 - > Important **individual acts and administrative decisions** can be challenged (e.g., financial referenda for large investments)
 - > In **all cantons**, the executive is directly elected by the people; in some, also judges and prosecutors

3.7 Swiss Citizenship

Remember

- Switzerland has a **three-level citizenship**: federal, cantonal, and communal (Art. 37 para. 1 Cst).
- Citizenship is based on **ius sanguinis** (descent), not ius soli (place of birth).
- Naturalization follows a **cantonal-federal-cantonal** process.

a) General Concept

- Every Swiss has at least **three citizenships**: Swiss, cantonal, and communal (Art. 37 para. 1 Cst)
- Federal and cantonal citizenship **cannot be obtained** without communal citizenship
- Special rights from Swiss citizenship: **political rights** (Art. 34), **domicile anywhere** (Art. 24), **no expulsion** (Art. 25 para. 1), diplomatic protection, military duty (Art. 59 para. 1)

b) Acquisition by Law (Ius Sanguinis)

- Based on **parents' origins**, not place of birth (Art. 38 para. 1 Cst)
- Swiss at birth if (Art. 1 SCA):
 - > Child of married parents where **at least one parent** is Swiss
 - > Child of a Swiss mother **not married** to the father
 - > Minor foreign child of Swiss father upon **recognition of paternity**

c) Ordinary Naturalization

- **Cantonal-federal-cantonal** process:
 - > (1) Canton/commune agree in principle; forward application to **SEM** (State Secretariat for Migration) (Art. 13 para. 2 SCA)
 - > (2) SEM grants federal naturalization license if all requirements met (Art. 13 para. 3 SCA)
 - > (3) Canton makes final naturalization decision within 1 year (Art. 14 para. 1 SCA)
- Requirements: **integrated** into Swiss society, familiar with Swiss way of life, no security risk (Art. 11 SCA)
- Residence: **10 years** total in Switzerland (3 of last 5 years); years aged 8-18 count double (min. 6 actual years)
- Denial of naturalization must be based on **sound reasoning** (Art. 16 SCA) -- secret ballots not allowed (BGE 129 I 217)

d) Simplified Naturalization (Art. 20-25 SCA)

- Spouse of a Swiss citizen
- Persons who believed in good faith they were Swiss
- Stateless children
- Foreign child not included in parents' naturalization
- **Third-generation immigrants** (before age 25, meeting certain conditions)

e) Loss of Swiss Citizenship

- **By law** (automatic): annulment of parentage link (Art. 5 SCA); adoption by foreigners (Art. 6 SCA); at age 25 if born abroad, always lived abroad, holds other citizenship, and never registered (Art. 7 SCA)
- **By decree**: dual citizen living abroad who wishes to renounce (Art. 37 SCA)

- **Revocation:** dual citizens who seriously violate Swiss interests, e.g., espionage (Art. 42 SCA)
- **Nullification:** naturalization obtained by false information or concealment (Art. 36 SCA)

4. SOCIAL JUSTICE

Remember

- **Social justice** aims at establishing just and equal conditions within society, particularly between social classes.
- The Constitution contains **social objectives** (guidelines for legislators, NOT directly enforceable in courts).
- A few **social rights** are directly enforceable: right to assistance (Art. 12), children's protection (Art. 11), free basic education (Art. 19).

4.1 Concept

- Relatively new compared to other structural principles; emerged from the **industrial revolution** and socialist doctrine
- Aimed at improving living conditions of working classes
- Fundamental rights and democratic processes are of **limited value** for those who lack the means to benefit from them
- The Swiss Constitution does not explicitly label Switzerland a '**Sozialstaat**' (welfare state)

4.2 Social Objectives (Art. 41 Cst)

- **Guidelines for the legislature** -- NOT directly enforceable in courts, do NOT confer individual rights (Art. 41 para. 4 Cst)
- Federation and cantons must endeavor to ensure:
 - > Access to **social security** and required **health care**
 - > **Families** are protected and encouraged
 - > Everyone fit to work can earn a living under **fair conditions**
 - > Suitable **accommodation** on reasonable terms
 - > **Education and training** according to abilities
- Protection against economic consequences of **old age, invalidity, illness, accident, unemployment, maternity** (Art. 41 para. 2 Cst)

4.3 Competencies in Social Matters

- Constitution of 1848 had **no federal social competencies**; 1874 added fragmentary employee protection
- Today: extensive federal competencies, some with **substantive guidelines** (e.g., Art. 114 Cst on unemployment insurance)

Three-Pillar System (Art. 111 Cst)

- **1st Pillar**: Federal old-age, survivors' and invalidity insurance (AHV/IV) -- covers basic living expenses (Art. 112 Cst)
- **2nd Pillar**: Compulsory occupational pension scheme (BVG) -- supplements AHV/IV (Art. 113 Cst)
- **3rd Pillar**: Voluntary private pension schemes -- optional additional security (Art. 111 para. 4 Cst)
- Additional: unemployment insurance (Art. 114), child allowances/maternity (Art. 116), health/accident insurance (Art. 117)

- **Subsidiary support** by canton of residence when social security is insufficient (Art. 115 Cst)

4.4 Social Rights (Enforceable)

- **Art. 12 Cst:** Right to assistance and care, financial means for a decent standard of living (for persons in need)
- **Art. 11 Cst:** Children and young people have the right to special protection and encouragement of development
- **Art. 19 Cst:** Right to adequate and **free basic school education**
- **Art. 29 para. 3 Cst:** Right to free legal advice and representation for those without sufficient means
- **Art. 28 para. 3 Cst:** Right to strike (debated whether this is a social right)

KEY TERMS AND ABBREVIATIONS

Key Terms

- **Aktives Wahlrecht** = active right to vote (right to elect)
- **Passives Wahlrecht** = passive right to vote (right to be elected)
- **Stimmrecht** = right to participate in popular votes
- **Primus inter pares** = first among equals (Federal President)
- **Ius sanguinis** = citizenship by descent (blood)
- **Ius soli** = citizenship by place of birth
- **Suspensive referendum** = prevents entry into force
- **Abrogative referendum** = repeals acts already in force
- **Sozialstaat** = welfare state

Key Abbreviations

- **Cst** = Federal Constitution of the Swiss Confederation
- **PRA** = Federal Act on Political Rights (SR 161.1)
- **ParlA** = Parliament Act
- **SCA** = Swiss Citizenship Act (SR 141.0)
- **SEM** = State Secretariat for Migration
- **AHV** = Alters- und Hinterlassenenversicherung (old-age/survivors' insurance)
- **IV** = Invalidenversicherung (invalidity insurance)
- **BVG** = Berufliche Vorsorge (occupational pension)